

What is Considered Personal Data?

Reference guide for drone operators and aerial imaging professionals

Australian Privacy Act 1988 • Personal data in aerial operations • Your obligations

Legal Definition — Privacy Act 1988 (Cth)

"Personal information" means information or an opinion about an identified individual, or an individual who is reasonably identifiable, whether the information or opinion is true or not, and whether the information or opinion is recorded in a material form or not.

Privacy Act 1988 (Cth), s 6(1)

THE KEY TEST

The test is not whether you intended to collect personal data — it is whether the data CAN identify a person. If your drone footage could reasonably be used to identify someone, it is personal data under the Act.

1 Types of Personal Data Captured by Drones

Drone operations can capture personal data across several categories. Each carries specific privacy obligations.

VI Visual — Images & Video

- Faces identifiable from aerial footage
- People in their gardens, pools or balconies
- Individuals at protests, gatherings or events
- People entering or leaving a building
- Anyone visible through windows
- Recognisable clothing, hair or physique

AU Audio Recordings

- Conversations captured by onboard microphone
- Voices that identify a specific person
- Distinctive sounds linked to an individual
- Phone calls or private discussions below
- Names spoken aloud near the drone

GE Location & Movement Data

- GPS coordinates where individuals are present
- Movement patterns of a person over time
- Home address captured in flight logs
- Vehicle locations linked to known individuals
- Routine travel routes or habits revealed by data
- Metadata embedded in image files (EXIF)

ID Identifiers in Footage

- Vehicle registration plates
- Residential street addresses on letterboxes
- Business names visible at a property
- Unique physical features (tattoos, disability aids)
- Children in school uniforms with school name
- Security access codes or keypads visible to camera

2 Is It Personal Data? — Decision Guide

Question	Yes →	No →
Can a face be seen and identified?	Personal data	Consider other factors
Does a vehicle plate appear?	Personal data	Continue assessment
Is a home address or letterbox visible?	Personal data	Continue assessment
Could footage identify a person's location/routine?	Personal data	Continue assessment
Is audio captured with identifiable voices?	Personal data	Likely not — review

3 What is NOT Personal Data — Important Distinctions

Not all drone footage is personal data. Understanding the distinction helps you manage obligations proportionately.

✓ Generally NOT Personal Data

- Aerial shots of empty fields or farmland
- Infrastructure imagery with no people visible
- Fully anonymised footage (faces blurred)
- Aggregate crowd data with no individuals identifiable
- Commercial building exteriors with no persons
- Landscape or topographic survey data
- Weather or environmental monitoring data

✗ IS Personal Data — Even if Incidental

- Identifiable face in background of a landscape shot
- Car plate visible in a real estate flyover
- Person sunbathing in a neighbouring yard
- Crowd at a protest where individuals are identifiable
- Home address on letterbox in a survey image
- Worker on a construction site who can be named
- Child in a school uniform with school name visible

LEGAL NOTE

"Reasonably identifiable" is a broad standard — if someone who knows the person could identify them from the footage, it is personal data. You do not need certainty; reasonable possibility is enough to trigger the Privacy Act.

4 Sensitive Information — Higher Protection Required

Some personal data is classified as sensitive information under APP 3 and requires explicit consent to collect.

Health & disability

Visible medical equipment, mobility aids, hospital visits

Racial or ethnic origin

Physical appearance, cultural dress, community gatherings

Religious beliefs

Places of worship, religious dress, prayer gatherings

Political opinion

Protests, political rallies, activist gatherings

Sexual orientation

Footage that could reveal sexual orientation or identity

Criminal record

Footage near courts, corrective services facilities

IMPORTANT

If your drone footage captures sensitive information (e.g. images of people at a religious gathering or a protest), you generally need explicit consent from those individuals before collecting, using or disclosing that footage.

5 Your Obligations When You Collect Personal Data

Collect

- Only collect what is necessary (APP 3)
- Notify subjects where practicable (APP 5)
- Get consent before sensitive data collection
- Use the minimum resolution/detail needed

Use & Disclose

- Use data only for the purpose collected (APP 6)
- Do not on-sell footage without consent
- Disclose only to authorised parties
- Get new consent for new purposes

Store & Delete

- Secure storage with access controls (APP 11)
- Delete when no longer needed (APP 11)
- Allow subject access on request (APP 12)
- Correct inaccurate data if asked (APP 13)

Anonymisation — A Practical Tool

Where your brief does not require identifiable footage, anonymise by default: blur faces, plate numbers and addresses in post-production before delivery. Anonymised footage is no longer personal data under the Privacy Act and significantly reduces your compliance obligations.